

Opinion of the Court

authority to impair the pardon power of the Executive, Congress could not “direc[t] [a] court to be instrumental to that end.” *Ibid.* In other words, the statute in *Klein* infringed the judicial power, not because it left too little for courts to do, but because it attempted to direct the result without altering the legal standards governing the effect of a pardon—standards Congress was powerless to prescribe. See *id.*, at 146–147; *Robertson*, 503 U. S., at 438 (Congress may not “compe[l] . . . findings or results under old law”).¹⁹

Bank Markazi, as earlier observed, *supra*, at 226, argues that § 8772 conflicts with *Klein*. The Bank points to a statement in the *Klein* opinion questioning whether “the legislature may prescribe rules of decision to the Judicial Department . . . in cases pending before it.” 13 Wall., at 146. One cannot take this language from *Klein* “at face value,” however, “for congressional power to make valid statutes retroactively applicable to pending cases has often been recognized.” Hart and Wechsler 324. See, *e. g.*, *United States v. Schooner Peggy*, 1 Cranch 103, 110 (1801). As we explained in *Landgraf v. USI Film Products*, 511 U. S. 244, 267 (1994), the restrictions that the Constitution places on retroactive legislation “are of limited scope”:

“The *Ex Post Facto* Clause flatly prohibits retroactive application of penal legislation. Article I, § 10, cl. 1, prohibits States from passing . . . laws ‘impairing the Obligation of Contracts.’ The Fifth Amendment’s Tak-

¹⁹ Given the issue before the Court—Presidential pardons Congress sought to nullify by withdrawing federal-court jurisdiction—commentators have rightly read *Klein* to have at least this contemporary significance: Congress “may not exercise [its authority, including its power to regulate federal jurisdiction,] in a way that requires a federal court to act unconstitutionally.” Meltzer, Congress, Courts, and Constitutional Remedies, 86 Geo. L. J. 2537, 2549 (1998). See also Tyler 112 (“Congress may not employ the courts in a way that forces them to become active participants in violating the Constitution.”).